

daughter, Jane Doe (DOB 7/21/2009), filed this Petition through counsel Seth Rosenberg, Esq., to compromise the claim that Minor had against Prospect Sierra School related to an incident that occurred on December 13, 2021 in El Cerrito, CA. In that incident, Minor sustained injuries after being assaulted by a student. Petitioner represents that Minor sustained emotional distress and received treatment. She has not fully recovered. Minor and Petitioner entered into a settlement agreement disposing of this litigation.

Pursuant to the settlement agreement, Prospect Sierra offered the amount of \$115,000, of which \$55,955 is to be invested into a single premium deferred annuity that will yield future distributions to Minor in the amount of \$80,960. The deduction of \$59,044.42 represents a deduction from the settlement used to satisfy expenses and to pay for attorney's fees incurred.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on August 15, 2025. Counsel is directed to take all necessary steps to effectuate the settlement agreement. No appearance is required on December 3, 2025.

2. 9:00 AM CASE NUMBER: C23-02219

CASE NAME: LORENA FLORES VS. LUIS FERNANDO ESPINOZA

***HEARING ON MINOR'S COMPROMISE RE: KONNOR BENJAMIN AFZAL KHAN**

FILED BY: FLORES, LORENA VANESSA

TENTATIVE RULING:

Summary

Petitioner Nataly Duran ("Petitioner") Petition for Approval of Compromise of Connor Benjamin Afzal Khan ("Khan"), an adult person with disability, filed on August 5, 2025, is **granted**, as set forth below. No appearance is required at the hearing on December 3, 2025.

Background

On August 5, 2025, Petitioner, who is guardian *ad litem* for Khan, filed the Petition through Plaintiff's counsel Steven J. Brady, Esq., to compromise the claim that Khan had against Anna Marie Aparicio and Luis Fernando Garia Espinoza, related to an accident that occurred on September 10, 2021 in Antioch, CA. In that accident, Khan lost his father, Eqbal Afzal Khan. Mr. Khan suffered the loss of love, companionship, comfort, care, assistance, protection, affection, society, moral support, advice and guidance of his father. The Defendants collectively offered settlement in the amount of \$50,000 and the insurance carrier of Khan's father offered \$450,000 in uninsured motorist policy benefits.

Plaintiff/Claimant, Lorena Vanessa Flores, the widow of Konnor Benjamin Afzal Khan's father will receive 50% of the \$500,000.00 of settlement proceeds. Decedent, Eqbal Afzal Khan's three biological children, including Khan, will each receive 16.66% of the settlement proceeds or \$83,333.33 less attorney fees and costs.

Of the \$83,333 to be paid to Khan, \$55,573.50 be placed into a special needs trust account authorized

by Cal. Probate Code § 3604 for his benefit. The deduction of \$ 27,759.83 represents a negotiated deduction from the settlement used to satisfy liens for medical expenses and to pay for attorney's fees incurred. Petitioner's counsel prepared a proposed order to deposit funds into special trust account.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of this Claim and the Proposed Order to Deposit Funds into a Special Needs Trust lodged on August 5, 2025. No appearance is required on December 3, 2025.

3. 9:00 AM CASE NUMBER: C23-02347
CASE NAME: KRISTIN CASEY VS. KRIS HANSEN
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: CASEY, KRISTIN
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Kristin Casey's motion for leave to file a FAC pursuant to CRC 3.1324. The Motion relates to Plaintiff adding a cause of action pursuant to California Labor Code § 1102.5 for whistleblower retaliation allegedly committed by Defendant D.R. HORTON, INC.

For the reasons explained below, **Plaintiff's motion to for leave to file a FAC is granted.**

Factual Background

This is an employment related case in which Plaintiff KRISTIN CASEY alleges sexual harassment against her former employer, DEFENDANT D.R. HORTON, INC. ("DRH"). Plaintiff was a real estate agent selling homes for DRH where Plaintiff alleges, she repeatedly endured vulgar and threatening incidents of sexual harassment. (Complaint ¶ 1.) Plaintiff worked for Defendant D.R. Horton from June of 2018 to September 2023. (Casey Decl. ¶ 2.)

Procedural Background

Plaintiff filed her complaint on September 18, 2023. (Teti Decl., ¶ 2.) However, litigation in the case was halted on April 12, 2024, following the Court's grant of Defendants' motion to compel arbitration. (Id., ¶ 8.) Upon petitioning the Court of Appeal, the decision to grant Plaintiff's petition for writ of mandate reversing the arbitration order was not delivered until February 3, 2025, and the Court of Appeal's remittitur, returning jurisdiction to this Court, was not docketed until May 20, 2025. (Id., ¶¶ 10–11.) No demurrers have been filed, and this Motion is necessary for Plaintiff to amend her Complaint. (See id., ¶ 14; Code Civ. Proc. § 473.)

Plaintiff has continually developed the facts in this case through the discovery process, which has brought to light the connections giving rise to the retaliation claim under Labor Code § 1102.5. (Teti Decl., ¶ 14.) Plaintiff alleges through her attorney's declaration, that newly discovered information